Amendment. See, *e. g.*, *Dobbs* v. *Jackson Women's Health Organization*, 597 U. S. 215, 263–290 (2022); *Ramos*, 590 U. S., at 105–109.

III

"Some of our most 'egregious' cases have been those in which we have granted relief based on an unfounded Eighth Amendment claim," and *Atkins* is certainly near the top of the list. *Glossip* v. *Gross*, 576 U. S. 863, 905–906 (2015) (THOMAS, J., concurring). *Atkins*'s rejection of "the historical meaning of the [Eighth] Amendmen[t]," see *Ramos*, 590 U. S., at 106, has denied the justice governments have given to murder victims from time immemorial, *Glossip*, 576 U. S., at 905–906 (THOMAS, J., concurring). And it degrades the mildly intellectually disabled by putting them "on a level with . . . infants, imbeciles, and domestic animals"—those who cannot "'have known better.'" C. S. Lewis, The Humanitarian Theory of Punishment, 13 Issues in Religion and Psychotherapy 147, 151 (1987); see *Atkins*, 536 U. S., at 318, 319–320. In a future case, the Court should overrule *Atkins* and restore "the Cruel and Unusual Punishments Clause's fixed meaning in resolving any challenge brought under it." *Grants Pass*, 603 U. S., at 562 (THOMAS, J., concurring). For now, I respectfully dissent.

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JUSTICE ALITO, with whom JUSTICE THOMAS joins, and with whom THE CHIEF JUSTICE and JUSTICE GORSUCH join as to Parts I, III, and IV, dissenting.

In *Atkins* v. *Virginia*, 536 U. S. 304 (2002), this Court held that the Eighth Amendment forbids the execution of defendants whom it described, using the standard terminology of the time, as "mentally retarded." *Atkins* did not define that term for Eighth Amendment purposes, and our subsequent decisions on the issue have spawned doctrinal ambiguity and numerous unanswered questions. See, *e. g.*, *Hall* v. *Florida*, 572 U. S. 701, 740–742 (2014) (ALITO, J., dissenting); *Moore* v. *Texas*, 581 U. S. 1, 28–33 (2017) (ROBERTS, C. J., dissenting);

Bowling v. *Commonwealth*, 163 S. W. 3d 361, 369, 375 (Ky. 2005) (enumerating several basic questions that *Atkins* generated but left unresolved).

This case presents one of those questions: How should a court apply a 70-IQ cutoff when a defendant has multiple test scores in the record? As the decisions below demonstrate, our failure to address this recurring question has led to confusion and unsound analysis in lower courts. When the Court granted Alabama's most recent petition in this case, we asked the parties and *amici* to brief this question. 605 U. S. 1001 (2025). Their briefing provided helpful insight on analyzing multiple scores cumulatively. The Court nonetheless dismisses this opportunity to provide much-needed guidance to lower courts, even though six Justices stake out a position on whether the decision below is correct. See *ante*, at 291 (SOTOMAYOR, J., joined by JACKSON, J., concurring).

I respectfully dissent from the Court's decision to leave this important question unanswered. At the very least, we should reverse the lower courts' erroneous analysis of Smith's scores and remand for a fresh consideration of his *Atkins* claim using any sound method. Even if our decision went no further, we would provide clarity and coherence to one aspect of our *Atkins* doctrine. Instead, the Court shies away from its obligation to provide workable rules for capital cases. In doing so, the Court disserves its own death-penalty jurisprudence, States' criminal-justice systems, lower courts, and victims of horrific murders.

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I write to clarify the scope of our decisions in *Hall* and *Moore*, offer guidance on how courts may evaluate multiple IQ scores, and explain how the lower courts' decisions in this case contravened psychology, statistics, and precedent.

I

A

Before *Atkins*, a defendant convicted of a capital offense could argue at the sentencing phase of his trial that the

death penalty should not be imposed because his "mental retardation"—a condition that psychologists now term "intellectual disability"—diminished his culpability. *Bobby* v. *Bies*, 556 U. S. 825, 827–828 (2009). Specifically, under *Penry* v. *Lynaugh*, 492 U. S. 302 (1989), a defendant could argue that his disability rendered him "less able than a normal adult" to "act 'deliberately,'" "control his impulses," or "evaluate the consequences of his conduct." *Id.*, at 322–328. Applying this regime, Virginia sentenced Daryl Atkins to death after he unsuccessfully attempted to mitigate his culpability using evidence of intellectual disability.

When Atkins's case made it to this Court, he contended that *Penry*'s individualized approach was insufficient to protect nonculpable defendants under the Eighth Amendment. In particular, Atkins argued that juries could not make "reliable sorting decisions among defendants with mental retardation" and had not "cull[ed] the more culpable from those whose disabilities [should] preclude" a death sentence. Brief for Petitioner in *Atkins* v. *Virginia*, O. T. 2001, No. 00–8452, p. 39. Atkins therefore urged the Court to replace *Penry*'s "case-by-case administration" with a "categorical rule" barring imposition of the death penalty on any "perso[n] with mental retardation." Brief for Petitioner in No. 00–8452, at 39–40. The Court ultimately agreed with Atkins, holding that "the execution of mentally retarded criminals" violates the Eighth Amendment. *Atkins*, 536 U. S., at 321.

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One might have expected that the *Atkins* Court, in imposing a new categorical rule, would have also defined the category in question. Yet *Atkins* did not. *Id.*, at 317. That void entailed two consequences. First, States and lower courts would need to develop their own categorical definitions that were susceptible of judicial administration. *Ibid.* Second, because "[i]ntelligence, as measured by IQ, has predominated as the primary criterion for diagnosing" intellectual disability, it followed that IQ would feature in these

definitions and play a central role in adjudicating *Atkins* claims. American Association on Mental Retardation, Mental Retardation: Definition, Classification, and Systems of Supports 25 (10th ed. 2002) (AAMR); see, *e. g.*, *id.*, at 21–23 (cataloging the consistent use of an "IQ Cutoff" as a diagnostic requirement in the five decades leading up to *Atkins*); AAMR 66 (noting that possessing an IQ that is two or more standard deviations below the mean is a "necessary . . . criterion to establish a diagnosis of mental retardation"); American Psychiatric Association, Diagnostic and Statistical Manual of Mental Disorders 41 (rev. 4th ed. 2000) ("The essential feature of Mental Retardation" is an "IQ of about 70 or below").

In the years since *Atkins*, IQ has remained a central component of intellectual-disability diagnoses and *Atkins* claims. On the diagnostic end, "[i]dentifying deficits in intellectual functioning via IQs" continues to be "the standard of practice, as it has been for approximately a century." R. Floyd, R. Farmer, W. Schneider, & K. McGrew, Theories and Measurement of Intelligence, in 1 APA Handbook of Intellectual and Developmental Disabilities 392 (L. Glidden ed. 2021) (APA Handbook). Likewise, governments continue to incorporate IQ thresholds into intellectual-disability definitions that determine a defendant's eligibility for the death penalty. See, *e. g.*, *Ex parte Perkins*, 851 So. 2d 453, 456 (Ala. 2002); Ky. Rev. Stat. Ann. §532.130(2) (West Cum. Supp. 2025).

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Initially, *Atkins* entrusted States with the task of developing judicially manageable criteria to define intellectual disability and assess a defendant's IQ. 536 U. S., at 317; *Bies*, 556 U. S., at 831. In the ensuing years, however, this Court has inserted itself into that role and constitutionalized various rules for evaluating intellectual disability. Three of these rules concern IQ cutoffs and test scores.

First, in *Hall*, the Court clarified that States may use a 70-IQ cutoff for *Atkins* claims. *Hall* concerned a Florida

statute that defined "intellectual disability" as an IQ of 70 or less and "deficits in adaptive behavior" that manifested before age 18. Fla. Stat. § 921.137(1) (2013); *Hall*, 572 U. S., at 711. Addressing this provision, this Court concluded:

> "On its face this statute could be interpreted consistently with *Atkins* and with the conclusions this Court reaches in the instant case. Nothing in the statute precludes Florida from taking into account the IQ test's standard error of measurement, and as discussed below there is evidence that Florida's Legislature intended to include the measurement error in the calculation." *Id.*, at 711–712.

The undeniable thrust of this analysis is that a 70-IQ cutoff is constitutional, provided that courts consider measurement error when applying it. If that were not so—if a 70-IQ cutoff could *never* be dispositive of an *Atkins* claim—then *Hall* could not have held that Florida's statute was "consisten[t] with *Atkins*." 572 U. S., at 711. *Hall* thus clarified that the Eighth Amendment does not bar the death penalty when a defendant fails to prove that his IQ is 70 or below. This conclusion cohered with *Atkins*, which keyed its holding to a purported "national consensus" against "execut[ing] offenders possessing a known IQ less than 70." 536 U. S., at 316.

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While *Hall* affirmed a 70-IQ cutoff for *Atkins* claims, it imposed a constitutional rule about how courts may apply that cutoff to an IQ test score. At the time of *Hall*, Florida treated a test score as a "final and conclusive" determination of a defendant's IQ and "refus[ed]" to consider possible measurement error. 572 U. S., at 712. Thus, if a defendant failed to produce a test score of 70 or below, Florida courts rejected *Atkins* relief without considering any other evidence. *Hall* rejected Florida's approach. Although *Hall* acknowledged that sufficiently high scores might be dispositive in some cases, 572 U. S., at 715, the Court held that

courts must account for a test's "standard error of measurement," an estimate of the test's possible error, *id.*, at 723–724. To do so, courts must interpret an individual test score using a "confidence interval" that captures a range of IQs, rather than as a single point estimate.[1] If the confidence interval for a score spans 70 or lower, courts may not treat that score as singly dispositive of an *Atkins* claim. 572 U. S., at 723.

Three years later in *Moore*, this Court announced another constitutional rule of IQ analysis. There, a Texas defendant obtained a test score of 74 with a corresponding confidence interval spanning 69 to 79. 581 U. S., at 10. In determining whether the defendant satisfied a 70-IQ cutoff, the Texas Court of Criminal Appeals considered factors beyond the test score and its standard error of measurement. For example, the court noted that the defendant had possibly experienced depression when he took the IQ test. *Ex parte Moore*, 470 S. W. 3d 481, 517–519 (2015). The court also recognized that he had "external motivations to obtain a lower score, such as facing the death penalty" if he scored too high. *Id.*, at 517. Based on these extrinsic details, the Texas court concluded that there was "no reason to doubt" that the defendant's "actual IQ" was in the "higher portion" of the 69-to-79 interval and thus above 70. *Id.*, at 519. The court accordingly denied *Atkins* relief on IQ grounds.

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[1] A "confidence interval" is a range of values above and below a single test score. The upper and lower limits of a confidence interval are equal to the test score plus or minus the standard error of measurement or some multiple thereof. For instance, a 68% confidence interval for a score spans one standard error above and below the score, and a 95% confidence interval spans two standard errors above and below. See *Hall*, 572 U. S., at 713; R. Cohen, M. Swerdlik, & E. Sturman, Psychological Testing and Assessment: An Introduction to Tests and Measurement 176 (8th ed. 2013) (Cohen). Although *Hall* held that courts must consider a confidence interval when applying a 70-IQ cutoff to a score, the Court did not specify what confidence level must be used. As a result, *Hall* left lower courts guessing what level suffices. See 572 U. S., at 740–741 (ALITO, J., dissenting).

Moore rejected this analysis, holding that courts may not rely on "factors unique to [the defendant]" to conclude that his "true" IQ falls in one range of a confidence interval rather than another. 581 U. S., at 14. Put differently, *Moore* held that courts may not inflate or deflate estimates of a defendant's IQ based on specific details about him. When determining a defendant's IQ, a court must consider only his test scores and valid statistical analysis.

Our case law has thus laid out three rules concerning IQ and *Atkins* claims. First, *Atkins* does not bar the execution of a defendant who fails to prove an IQ of 70 or lower. Second, when determining whether a defendant has met this 70-IQ threshold, a court may not treat any one score as dispositive without considering a confidence interval based on the test's standard error of measurement. And third, courts may not use extrinsic, defendant-specific details to infer where his IQ falls within a given interval.

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B

Although *Hall* and *Moore* announced rules about treating a *single* test score as dispositive, this Court has never explained when courts may treat *multiple* scores as cumulatively dispositive. *Hamm* v. *Smith*, 604 U. S. 1, 2 (2024) (*per curiam*). Our silence on this issue leaves courts without direction on how to address a recurring situation. Because defendants raising *Atkins* claims have usually taken multiple IQ tests, courts must often apply a 70-IQ cutoff to a defendant with several scores. See, *e. g.*, *Smith* v. *Ryan*, 813 F. 3d 1175, 1183–1184 (CA9 2016) (five scores); *State* v. *Escalante-Orozco*, 241 Ariz. 254, 290, 386 P. 3d 798, 834 (2017) (four scores); *Black* v. *Carpenter*, 866 F. 3d 734, 737–738 (CA6 2017) (10 scores); *Jackson* v. *Payne*, 9 F. 4th 646, 653 (CA8 2021) (four scores). See also Pet. for Cert. in *Saldano* v. *Texas*, O. T. 2025, No. 25–5749, p. 6 (four scores). By Smith's count, *Atkins* claims presenting multiple IQ scores have arisen at least 56 times since our decision in *Hall*. See Brief

for Respondent 9, and n. 1; App. to Brief for Appellant 1a–17a. These cases "starkly underscor[e] the need for clarity" on this issue, and our failure to provide it has not gone unnoticed. *Busby* v. *Guerrero*, 175 F. 4th 610, 611 (CA5 2026) (opinion of Higginson, J.). "In a matter of life and death," lower-court judges "must be certain that [they] apply the proper constitutional rule." *Ibid.*

Fortunately, psychometric literature provides various methods for estimating a person's "true" IQ using multiple scores.[2] Although the Constitution does not require courts to adopt any one approach, the medical community's IQ-estimation techniques inform our *Atkins* jurisprudence. *Hall*, 572 U. S., at 710–713. Thus, courts and legislatures may rely on any reasonably sound method of estimating a defendant's "true" IQ. The parties and *amici* discuss several approaches, and I highlight three that appear in the APA's Handbook of Intellectual and Developmental Disabilities.

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First, multiple IQ scores may be used to calculate a "composite score." This approach provides a mathematically rigorous way to aggregate scores across different tests into a single, more precise estimate. APA Handbook 415–417. Indeed, a prominent psychology expert whom this Court cited in *Hall* suggests that the composite-score method is appropriate for estimating the "true" IQ of someone "facing the death penalty." W. Schneider, Can't Decide Which IQ Is Best? Make a Composite Score 1 (Jan. 13, 2012), http://assessingpysche.wordpress.com/2021/01/13/cantdecide-which-iq-is-best-make-a-composite-iq-score/; accord, D. Wat-

[2] IQ is measured using a standardized scale that gauges a person's intellectual functioning relative to the overall population. Cohen 323–335. Because these scales are mathematical constructs, there is no such thing as a "real" IQ. W. Schneider, Principles of Assessment of Aptitude and Achievement, in The Oxford Handbook of Child Psychological Assessment 289 (P. Nathan ed. 2013) (Schneider, Oxford Handbook). From a statistical standpoint, however, an individual does have a "true" IQ, which is the expected value of someone's score over a long run of repeated, independent administrations of an IQ test. APA Handbook 396.

son, Intelligence Testing, in The Death Penalty and Intellectual Disability 124 (E. Polloway ed. 2015) (Watson) (discussing the composite-score approach as an appropriate method in the death-penalty context).

The estimate produced by a composite-score calculation can be interpreted like any other IQ score. In other words, a composite-score estimate of 70 reflects intellectual functioning that is "significantly subaverage." See Schneider, Oxford Handbook 290–291. And because using multiple scores can increase measurement precision, the standard error for a composite score will often be smaller than that for any constituent test score. *Id.*, at 291; APA Handbook 415–417. The resulting confidence interval for a composite score will thus be narrower. *Id.*, at 417.

Computing a composite score and its associated standard error of measurement is a multistep calculation that requires the defendant to provide certain statistics about the tests that he has taken. *Id.*, at 416–417; Watson 124. When a defendant provides all these data, courts, with the assistance of expert witnesses, can construct a composite score and its corresponding confidence interval. Unless that interval spans 70 or below, courts may deny *Atkins* relief.

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Second, if a defendant fails to provide the information necessary to compute a composite score, the "next best practice" for estimating someone's "true" IQ is to take the median value of his scores. Watson 124. The median score is a "reasonable estimate" of a defendant's "true" IQ that is "appropriate and useful" where the 95% confidence intervals for all of an individual's scores overlap. APA Handbook 415. Thus, when this condition is met, courts adjudicating *Atkins* claims can "reasonabl[y]" and "appropriate[ly]" conclude that a defendant's IQ is above 70 when his median score exceeds 70. APA Handbook 415.

Third, some have suggested that it may be valid for an expert witness to take a less formal approach and make a judgment call about the "central tendency" of a defendant's

various scores. *Ibid.* When a defendant takes multiple tests, his scores will usually "cluster" around his "true" IQ. A. Frances, Essentials of Psychiatric Diagnosis: Responding to the Challenge of DSM–5, pp. 30–31 (2013) (Frances). Under this approach, when an expert determines that a defendant's scores "cluster," or evince a "central tendency," above 70, a court can reasonably conclude that a defendant's "true" IQ exceeds 70.

Any one of these approaches provides a reasonable way to evaluate whether a defendant's IQ is 70 or below in *Atkins* cases involving multiple scores. And when a court using a reasonable method concludes that a defendant's "true" IQ is above 70, it may reject an *Atkins* claim solely on that ground.

II

The courts below did not apply any defensible method to determine Smith's IQ. To the contrary, they relied on psychologically, statistically, and legally unsound analyses to conclude that Smith's IQ is 70 or below. At the very least, we should reverse and remand to give the lower courts an opportunity to perform a proper analysis.

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A

Consider first the Eleventh Circuit's 2023 decision, which affirmed that Smith was entitled to *Atkins* relief. The Eleventh Circuit's analysis started off on the right foot. It explained that Smith "ha[d] the burden of proving" that he possessed "significant subaverage intellectual functioning." *Smith* v. *Commissioner*, 67 F. 4th 1335, 1345 (2023) (*per curiam*) (internal quotation marks omitted). Likewise, the court correctly recognized that "[w]hether Smith has significantly subaverage intellectual functioning turns on whether he has an IQ equal to or less than 70." *Ibid.* Thus, in upholding the lower court's decision to grant Smith *Atkins* relief, the Eleventh Circuit necessarily concluded that his "true" IQ was 70 or lower.

In reaching this conclusion, however, the Eleventh Circuit employed an illegitimate approach to analyzing Smith's scores. The record below contained five valid IQ scores for Smith: 75, 74, 72, 78, and 74. 67 F. 4th, at 1345–1346. When assessing whether Smith's IQ was 70 or lower based on these data, the Eleventh Circuit did not employ any recognized method for analyzing multiple test scores. Instead, it determined Smith's "true" IQ by taking the value at "the lower end" of the confidence interval for "his lowest IQ score." *Id.*, at 1346. Here, Smith's lowest valid score was 72, with a standard error of measurement of 3. *Id.*, at 1340. From those values, the Eleventh Circuit determined that Smith's IQ was "actually as low as 69" and his *Atkins* claim therefore met the 70-IQ cutoff. 67 F. 4th, at 1349. In other words, under the Eleventh Circuit's view, whenever the lower bound of a defendant's lowest score spans 70 or lower, his *Atkins* claim satisfies the IQ threshold, and courts must "move on" to consider evidence for other *Atkins* criteria. 67 F. 4th, at 1347.

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This approach is flagrantly unsound. When a defendant has multiple IQ scores, it is indefensible to use the lower bound of his lowest score to determine whether his "true" IQ is 70 or below. Such an approach contravenes basic principles of psychological measurement and statistics.

First, psychometric literature teaches that when an individual has multiple IQ scores, the "higher scores are likely to be more indicative" of a person's intelligence than the lower scores. Frances 31; accord, S. Whitaker, The Stability of IQ in People With Low Intellectual Ability: An Analysis of the Literature, 46 Intellectual and Developmental Disabilities, No. 2, p. 126 (2008) (Whitaker) (noting it is "likely that the higher result [is] the more accurate"). This asymmetry reflects the fact that the possible sources of error in an individual's IQ-test performance, such as uncooperativeness, anxiety, sleep deprivation, malingering, or other mental-health disorders, "will tend to reduce" one's score. *Ibid.*

In contrast, there is "no reason why" an IQ score would overestimate someone's intelligence. Frances 31. This principle counsels against making decisions based on someone's lowest score.

The Eleventh Circuit flipped this principle of psychology on its head by giving dispositive weight to Smith's lowest score, which was likely "subject to more error" and "less accurate" than the others. Whitaker 126. If anything, the Eleventh Circuit should have given greater weight to Smith's higher scores of 75 and 78, which indicate that *Atkins* does not bar his execution. See *Hall*, 572 U. S., at 715 (noting that the defendant conceded the validity of a bright-line 75-IQ cutoff for *Atkins* claims).

Second—and most critically—the Eleventh Circuit's sole reliance on the lower bound of Smith's lowest score reflects a basic misunderstanding of statistics. When clinicians construct a confidence interval using the standard error of measurement, their calculations rely on the assumption that a defendant's test scores are normally distributed around his "true" IQ—*i. e.*, if a defendant took a large number of IQ tests, the scores would form a bell curve centered on his "true" IQ. Cohen 176; K. Widaman, Concepts of Measurement, in The Death Penalty and Intellectual Disability 68 (E. Polloway ed. 2015). Under that assumption, an individual's score on any given test is more likely to be close to his "true" IQ than far away from it. This fact, in turn, means that the values near the center of a confidence interval are more likely estimates of the defendant's "true" IQ than the values at the interval's upper and lower bounds. See G. Cumming & F. Fidler, Confidence Intervals Give Better Answers, 217 J. Psychology 18 (2009); G. Cumming, Inference by Eye: Pictures of Confidence Intervals and Thinking About Levels of Confidence, 29 Teaching Statistics 90–91 (2007).

The Eleventh Circuit's analysis ignored this attribute of confidence intervals. It concluded that Smith's IQ was 70 or below because the lower bound of the interval for one score

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was 69. But the fact that 69 marked the lower limit of the interval meant that this value was *less* likely to reflect Smith's "true" IQ than other, higher values in the interval. Once again, the Eleventh Circuit's analysis was precisely backward.

The Eleventh Circuit attempted to justify its approach by citing *Hall* and *Moore*. On its reading of those cases, any time that the lower bound of a defendant's lowest score descends to 70 or below, IQ cannot be dispositive, and courts must decide an *Atkins* claim based on evidence of the defendant's adaptive functioning. 67 F. 4th, at 1348–1349 ("*Hall* and *Moore* required the district court to turn to evidence of Smith's adaptive deficits because the lower end of his standard-error range was 69"). But as we recognized the last time that this case was before us, neither *Hall* nor *Moore* established any rules for analyzing multiple IQ scores, much less the one-low-score approach that the Eleventh Circuit took. *Hamm*, 604 U. S., at 2 ("This Court has not specified how courts should evaluate multiple IQ scores" (citing *Hall*, 572 U. S., at 714, and *Moore*, 581 U. S., at 1)).

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Start with *Hall*. To be sure, the defendant in that case had taken multiple IQ tests. 572 U. S., at 707. But neither the Florida courts nor this Court considered the cumulative significance of his scores. See *Hall* v. *State*, 109 So. 3d 704, 707–711 (Fla. 2012) (*per curiam*); *Hall*, 572 U. S., at 724. Under then-controlling Florida case law, state courts considered each score individually. See *Cherry* v. *State*, 959 So. 2d 702, 712–714 (Fla. 2007). Unless a defendant provided at least one score of 70 or below, Florida courts would deny relief. Although *Hall* rejected this approach, the decision did not explain how courts should consider the cumulative significance of multiple scores. To the extent that *Hall* addressed multiple-score analysis at all, it held only that courts must "take into account" potential measurement error. 572 U. S., at 724. *Hall* did not, however, explain *how* to account for error across multiple scores. It merely noted that such

analysis is a "complicated endeavor," one that neither Florida courts nor this Court had undertaken. *Id.*, at 714. This cursory discussion is hardly the sort of treatment that the Court would have given if it had intended to impose a one-low-score approach.[3]

Moore did not mandate the Eleventh Circuit's approach, either. As I have already explained, *Moore* prohibited courts from using extrinsic facts about a defendant to draw conclusions about where his "true" IQ falls within a confidence interval. Beyond that, *Moore*'s IQ discussion merely reaffirmed *Hall*'s holding that courts must consider the standard error of measurement when applying a 70-IQ cutoff to a single score. 581 U. S., at 14. *Moore* did not articulate any rules about analyzing multiple scores in aggregate. As in *Hall*, the defendant in *Moore* had multiple IQ scores in the record, *id.*, at 10, but neither the Texas court nor this Court considered those scores collectively, see *Ex parte Moore*, 470 S. W. 3d, at 519; *Moore*, 581 U. S., at 14.

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If psychology, statistics, and our case law do not suffice to underscore the flaws of the Eleventh Circuit's one-low-score approach, common sense seals the deal. The Eleventh Circuit's approach would produce absurd results. Imagine that a defendant had taken an IQ test every year from first grade through high-school graduation. Suppose that five of these scores were 100, five were in the 90s, one was in the 80s, and one was 71 on a test with a standard error of 3. On this hypothetical record, there would be no practical likelihood that the defendant's IQ is 70 or below. Rather, the most reasonable conclusion would be that the 71 score is an outlier,

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[3] *Hall* also warned that, even when a defendant has multiple scores, the tests "may be . . . administered in a consistently flawed manner [such] that even a consistent score is not conclusive." 572 U. S., at 714. It does not follow, however, that multiple scores are never dispositive. If a defendant believes that one or more of his test scores are flawed, he is of course free to argue that courts should disregard those scores when determining his "true" IQ. *Id.*, at 743, n. 14 (ALITO, J., dissenting).

and that its confidence interval does not capture the defendant's "true" IQ. But under the Eleventh Circuit's one-low-score rule, a court could not deny *Atkins* relief on these scores unless it separately found inadequate the defendant's adaptive-functioning evidence. In effect, a court would need to ignore the defendant's 11 higher scores and consider only the outlier. That approach cannot be correct, and our case law does not command it.

In short, the Eleventh Circuit's 2023 analysis was indefensible. In determining whether Smith satisfied a 70-IQ cutoff, the court focused on the lower bound of the confidence interval for Smith's lowest score—the least plausible region of the interval for what was likely Smith's least accurate score. Because this Court was troubled by this deeply flawed approach, we summarily vacated the Eleventh Circuit's decision last Term. *Hamm*, 604 U. S., at 1–3.

B

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The Eleventh Circuit's attempt to resuscitate its decision on remand remained flawed. Once again, the Eleventh Circuit began by correctly noting that *Atkins* requires Smith to prove that "his IQ is 70 or lower." *Smith* v. *Commissioner, Ala. Dept. of Corrections*, No. 21–14519 (Nov. 14, 2024) (*per curiam*), App. to Pet. for Cert. 3a. The court then concluded that "the record evidence plausibly supports" the finding that "Smith's true IQ score *could be* less than or equal to 70." *Id.*, at 7a (emphasis added). In support of this conclusion, the Eleventh Circuit quoted the District Court's analysis:

> "'Smith did not consistently score so high that the [c]ourt is confident that the lowest score can be thrown out as an outlier or that the standard error for the' other tests, which individually suggest Smith's true IQ *may be* 70 or lower, 'can be disregarded.'" *Id.*, at 6a (quoting *Smith* v. *Dunn*, Civ. Action No. 05–cv–00474 (SD Ala.,

Aug. 17, 2021), App. to Pet. for Cert. 70a; emphasis added).

This analysis cannot justify granting *Atkins* relief. First, it is not enough for Smith to show that his "true" IQ "could be" or "may be" 70 or lower. Rather, Smith needed to show that his IQ *is* 70 or lower. Moreover, even if the District Court definitively concluded that Smith had a 70-or-lower IQ, the court's reasoning could not support such a conclusion. For reasons that I have already discussed, it is unsound to hold that Smith satisfied a 70-IQ threshold simply because the lower limits of the intervals for some scores descended to 70. To obtain relief, Smith needs to prove that his scores cumulatively demonstrate a "true" IQ of 70 or lower.

Apart from test scores, the Eleventh Circuit's decision on remand also relied on evidence of Smith's adaptive functioning to conclude that his IQ was 70 or lower. In particular, the Eleventh Circuit pointed to the District Court's conclusion that "[a]though [Smith] has scored above 70 on many of his IQ tests, his adaptive behavior problems are severe enough that his actual functioning is lower." App. to Pet. for Cert. 61a. In other words, although Smith's scores all exceeded 70, the courts concluded that his "actual" IQ was lower using evidence other than his scores and their standard errors. *Ibid.*

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This line of reasoning is equally untenable, as it commits the same error that the Texas Court of Criminal Appeals made in *Moore*. Estimates of Smith's IQ spanned the 70s, yet the courts below concluded that Smith's "actual" IQ more likely fell in the 70-or-lower range of these intervals. App. to Pet. for Cert. 61a. As in *Moore*, the lower courts grounded this quantitative conclusion on "factors unique to [Smith]." 581 U. S., at 14. Specifically, the District Court deflated its estimate of Smith's IQ based on details about his social and interpersonal difficulties, his struggles living independently, and his academic underperformance. App. to

Pet. for Cert. 61a. As in *Moore*, however, none of that evidence permits the lower courts to conclude that Smith's "true" IQ is more likely to fall at the lower (or higher) end of an estimated range. 581 U. S., at 14; accord, Whitaker 126 ("Other sources of information" about "how the individual functions in his/her environment" cannot be "used quantitatively to reduce margin of error in an IQ score").

Indeed, the evidence on which lower courts relied to deflate their estimate of Smith's IQ was even less relevant than the evidence that the Texas court considered in *Moore*. In *Moore*, the Texas court relied on evidence that plausibly caused a test to underestimate the defendant's IQ, such as his possible depression on test day and his strong incentive to underperform. *Ex parte Moore*, 470 S. W. 3d, at 517–519. Here, in contrast, the lower courts discounted Smith's IQ using facts completely unrelated to his testing, such as his failure to maintain a bank account and his difficulties purchasing groceries. App. to Pet. for Cert. 87a. If *Moore* prohibits courts from using test-day details to inflate an IQ estimate, then surely it prohibits courts from using sundry facts about a defendant's life before prison to deflate an estimate.[4] Yet this is precisely the evidence on which the courts below relied to conclude that Smith's IQ was 70 or below.

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Because the Eleventh Circuit continued to rely on unsound reasoning, I would reverse and remand its 2024 decision with instructions to reevaluate Smith's IQ using any sound method.

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[4] Our earlier summary-vacatur opinion in this case is not to the contrary. In suggesting that courts might consider "expert testimony" when evaluating Smith's scores, we simply recognized that litigants usually introduce test scores, evidence of their validity, and any relevant statistical analysis through expert testimony. *Hamm* v. *Smith*, 604 U. S. 1, 2 (2024) (*per curiam*). We did not suggest that courts may factor in expert testimony about a defendant's adaptive functioning when determining whether the defendant satisfies the 70-IQ threshold.

C

Smith's attempts to defend the judgment below are similarly unpersuasive. Smith contends that *Hall* and *Moore* require courts to "consider other evidence of intellectual functioning" whenever "IQ scores alone are inconclusive." Brief for Respondent 24. But this contention only raises the question of when multiple scores are "inconclusive" under *Atkins*. When pressed at oral argument to address this question, Smith's counsel steadfastly refused to give a clear or consistent answer. At one point, counsel conceded that several sufficiently high IQ test scores could be dispositive even if one score was 71. Tr. of Oral Arg. 104–105. Moments later, however, counsel suggested that *any* time the confidence interval for a test score falls below 70, courts must consider evidence beyond IQ tests. *Id.*, at 120. When we asked counsel to clarify when, if ever, test scores alone could be conclusive, he retorted only that Smith was "not in the same time zone" as a defendant for whom scores might be dispositive. *Id.*, at 116. Obviously, an "I know it when I see it" rule is plainly inappropriate for determining whether to impose the death penalty.[5]

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[5] Certain *amici* suggest that IQ scores should *never* be dispositive in *Atkins* claims because clinicians would never treat IQ as conclusive in diagnosing intellectual disability. Brief for American Psychological Association et al. as *Amici Curiae* 6–8 (APA Brief); Brief for American Association on Intellectual and Development Disabilities et al. as *Amici Curiae* 27–28 (AAIDD Brief). That argument is wrong several times over. For one, *Hall* recognized (consistent with Smith's concession) that IQ scores could be dispositive under *Atkins* if they are sufficiently high. 572 U. S., at 711–712, 715. More fundamentally, *amici* err by assuming that IQ's role under *Atkins* must mirror its role in the clinical context. As *amici* admit, the "clinical framework for diagnosing intellectual disability was largely developed . . . independently of . . . the criminal cour[t]." AAIDD Brief 8. And the APA stresses that clinical diagnostic criteria are not well "tailored" for making decisions in "the death penalty context." APA Brief 5. Thus, although our *Atkins* doctrine has consulted the diagnostic criteria for intellectual disability, this Court has rejected the view that

Smith separately argues that the District Court's analysis merely tracked Alabama law, which does not bar consideration of adaptive-functioning evidence even if a defendant fails to produce a 70-or-lower test score. Brief for Respondent 45–46. But whether the District Court correctly granted habeas relief turns on whether Smith's death sentence violated the Constitution, not Alabama law.[6] See 28 U. S. C. § 2254(a). Regardless, Alabama law, like our *Atkins* doctrine, requires a defendant to prove that his IQ is 70 or below. See *Ex parte Perkins*, 851 So. 2d, at 456. Smith has thus far failed to do so under any valid method, and he cannot identify a single Alabama case in which a court granted relief after concluding that a defendant's IQ exceeded 70. See, *e. g.*, *Mulkey* v. *State*, —— So. 3d —— (Ala. Crim. App. 2025) (applying a 70 IQ cutoff and denying relief to a defendant who scored 72). The District Court's decision therefore fares no better under Alabama law.

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courts must yield to every putative expert consensus. See *Moore* v. *Texas*, 581 U. S. 1, 13 (2017); *id.*, at 22 (ROBERTS, C. J., dissenting) ("clinicians, not judges, should determine clinical standards; and judges, not clinicians, should determine the content of the Eighth Amendment"). And as I explain below, eschewing bright-line IQ thresholds would place our *Atkins* doctrine on a collision course with its own logic and with our Eighth Amendment jurisprudence more broadly. See *infra*, at 336–338.

[6] Although JUSTICE SOTOMAYOR asserts that the correctness of the District Court's intellectual-disability determination turns on Alabama law, *ante*, at 297, she ultimately concludes that whether Smith is disabled is a factual issue subject to clear-error review. *Ante*, at 298–299. Our decisions, however, indicate that IQ analyses in *Atkins* claims pose mixed questions of law and fact. A defendant's specific scores are factual issues, whereas the propriety of a court's interpretation of those scores can be an issue of federal law. See *Hall*, 572 U. S., at 723 (concluding that the Constitution prohibited Florida's approach to analyzing IQ scores); *Moore*, 581 U. S., at 13–15 (vacating the Texas court's IQ analysis because it contravened our holding in *Hall*, not because it constituted clear factual error).

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The lower courts' IQ analysis was flawed at every stage of this litigation. Because the courts below have yet to provide a sound basis for granting Smith *Atkins* relief, the Court should reverse the Eleventh Circuit's decision and remand this case for further proceedings.

III

JUSTICE SOTOMAYOR attempts to justify dismissing this case on the ground that it does not meaningfully present the question on which we granted certiorari. This assertion blinks reality. The question on which we granted certiorari asks how courts should "consider the cumulative effective of multiple IQ scores in assessing an *Atkins* claim." 605 U. S. 1001. When the courts below assessed Smith's claim, they evaluated whether his "multiple IQ scores" were "consistently . . . so high" as to establish "that Smith is not intellectually disabled" under *Atkins*. App. to Pet. for Cert. 70a. Thus, this case plainly presents the question on which we granted certiorari, as well as the intertwined question of whether the courts below properly analyzed Smith's scores when granting him *Atkins* relief. Contra, *ante,* at 287–289 (SOTOMAYOR, J., concurring).

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JUSTICE SOTOMAYOR nevertheless emphasizes that "Alabama never argued that the [District Court] must . . . us[e] any particular method (or set of methods) to assess whether an *Atkins* claimant has proven significantly subaverage intellectual functioning." *Ante,* at 287. But it was not Alabama's burden to explain why Smith's IQ scores disqualified him from *Atkins* relief. Rather, Smith has the burden of proving that his scores establish an IQ of 70 or less using some defensible method. See *Hawk* v. *Olson*, 326 U. S. 271, 279 (1945) ("Petitioner carries the burden in a collateral [habeas] attack"). Alabama has consistently maintained that Smith fails to satisfy this burden given his scores. See Respondent's Post-Hearing Brief in *Smith* v. *Dunn*, No. 05–cv–00474

(SD Ala.), ECF Doc. 129, pp. 36–46. The District Court held otherwise only by engaging in unsound analysis, and Alabama has objected to that analysis at every stage of the litigation since. See Respondent's Motion to Alter or Amend the Judgment in *Smith*, *supra*, ECF Doc. 136, pp. 3–7; Brief for Appellant in No. 21–14519 (CA11), ECF Doc. 12, pp. 40–42; Pet. for Cert. in *Hamm* v. *Smith*, O. T. 2023, No. 23–167, pp. 10–20; Pet. for Cert. 26–31. Having properly preserved this issue, Alabama could "'make any argument in support'" of its position in this Court, even if it did not present those "'precise arguments'" below. *Lebron* v. *National Railroad Passenger Corporation*, 513 U. S. 374, 379 (1995). Indeed, it was particularly appropriate for Alabama to raise arguments about cumulative-score analysis given that we specifically directed the State to do so.[7] See 605 U. S. 1001. In suggesting that Alabama needed to raise these same exact arguments below, JUSTICE SOTOMAYOR misunderstands basic party-presentation rules and joins the lower courts in improperly shifting the burden to Alabama.

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To be sure, I agree with JUSTICE SOTOMAYOR that the decision below was not "trained on" any rigorous multi-score analysis. *Ante*, at 286. But that shortcoming is precisely why we should reverse the decision below and remand this case for further proceedings.

IV

Today, the Court declines to offer guidance on analyzing multiple IQ scores despite receiving significant briefing on the issue. The Court's failure to resolve this issue will have

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[7] The crux of JUSTICE SOTOMAYOR's stance appears to be that the Court erred by granting certiorari on the question as formulated by the United States. *Ante*, at 285. But this petition-stage gripe is no reason to dismiss the case a year later. The parties and *amici*—not to mention Members of this Court—devoted substantial resources to this case and thoroughly addressed the question presented, and that question is dispositive to the judgment below.

regrettable consequences. Without clear rules for determining when multiple IQ scores are dispositive, nearly every *Atkins* case will devolve into an amorphous, individualized determination of whether the defendant meets an imprecisely defined notion of "significantly subaverage intellectual functioning" under which the role of IQ is not clearly articulated. See *ante*, at 294–298 (SOTOMAYOR, J., concurring) (describing that approach as "holistic"). Such an approach will place our *Atkins* doctrine out of step with psychology, our death-penalty jurisprudence, and *Atkins* itself. In the field of psychology, IQ testing remains the standard practice for measuring intellectual functioning, and it is difficult to find a definition of "significantly subaverage intellectual functioning" that does not center on IQ. See, *e. g.*, R. Schalock, R. Luckasson, & M. Tasse, Intellectual Disability: Definition, Diagnosis, Classification, and Systems of Supports 29, 130 (12th ed. 2021) (defining the condition as having an IQ two standard deviations below the mean); APA Handbook 392–393.

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It is likewise difficult for courts to develop objective, judicially manageable standards for evaluating intelligence that do not turn on IQ. Without clear IQ criteria, *Atkins* proceedings will be little more than battles of experts, with one side saying that the defendant's intellectual functioning is "significantly subaverage," and the other saying that it is not. Whether a defendant lives or dies will hinge on which expert a judge finds more credible. Cf. 536 U. S., at 353 (Scalia, J., dissenting) (predicting that *Atkins* will "tur[n] the process of capital trial into a game"). Indeed, both the District Court and Eleventh Circuit openly admitted that whether Smith would be executed "'largely [came] down to which expert' the district court 'believed.'" App. to Pet. for Cert. 8a (quoting *id.*, at 91a; alteration in original); see 67 F. 4th, at 1353.

This unmoored approach to *Atkins* will produce the very sort of "arbitrary and unpredictable" outcomes that our post-*Gregg* death-penalty jurisprudence has sought to avoid.

California v. *Brown*, 479 U. S. 538, 541 (1987); see *Gregg* v. *Georgia*, 428 U. S. 153 (1976). If *Atkins* has any prospect of surviving as a workable doctrine, lower courts need "'clear and objective standards' that provide 'specific and detailed guidance'" on how to analyze multiple IQ scores. *Godfrey* v. *Georgia*, 446 U. S. 420, 428 (1980) (plurality opinion) (footnote omitted). The Court's refusal to provide such guidance will continue to undermine the intelligibility of this doctrine.

A case-by-case approach without categorical IQ rules also runs contrary to *Atkins*'s very premise. As I noted at the outset, *Atkins* rejected *Penry*'s regime, under which the relationship between a capital defendant's intellectual capability and his culpability would be assessed on an individualized, case-by-case basis. In its place, *Atkins* adopted a categorical rule under which IQ would necessarily play a central role. For this rule to function in a defensible way, the Court needs to elucidate sound and reputable methods for dealing with multiple IQ scores. If courts relegate the 70-IQ cutoff to a perfunctory formality and the main point of contention in *Atkins* cases becomes an individualized assessment of a defendant's adaptive functioning, then the *Atkins* Court's basis for imposing a categorical rule will disintegrate.[8]

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[8] Indeed, the continued diminution of IQ's role in *Atkins* claims means that capital sentencing will turn on individualized determinations that are less relevant to the Eighth Amendment than those that occurred under the pre-*Atkins* regime. Our Eighth Amendment jurisprudence evaluates the constitutionality of a criminal penalty by asking whether imposing the penalty would advance traditional goals of punishment, such as retribution or deterrence. See, *e. g.*, *Roper* v. *Simmons*, 543 U. S. 551, 571 (2005). Before *Atkins*, a sentencing jury could consider the direct relationship between intellectual disability and those goals. For instance, a jury could consider how a defendant's intellectual functioning bore on his just deserts or his capacity to control his actions, understand consequences, and discern right from wrong. See *Penry* v. *Lynaugh*, 492 U. S. 302, 322–328 (1989). In contrast, individualized adaptive-functioning analyses turn on assorted details about a defendant's life, such as how much income he made or whether he cooked his own food. See, *e. g.*, *Smith* v. *Dunn*,

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This case presented an opportunity for the Court to explain how courts should evaluate *Atkins* claims when the defendant has multiple IQ test scores. Nothing in our case law sanctioned the lower courts' analyses, and we should have used this case to bring clarity to our *Atkins* doctrine. By instead remaining silent, the Court exacerbates the confusion that plagues our jurisprudence in this area. If this Court continues to shy away from opportunities to provide workable doctrine, we should not be surprised if petitions asking us to overrule *Atkins*, *Hall*, and *Moore* arrive at our doorsteps soon. See, *e. g.*, Brief for United States as *Amicus Curiae* 26–32 (asking the Court to overrule *Hall* and *Moore*); Brief for Commonwealth of Kentucky as *Amicus Curiae* 2 (urging the Court to "engage in a more wholesale rethinking" of *Atkins*); *ante*, at 301 (THOMAS, J., dissenting); cf. Brief for State of Idaho et al. as *Amici Curiae* 14–17 (urging the Court to "undercut the 'evolving standards of decency' framework" even though "no party has asked for . . . *Atkins* to be overruled" here); Pet. for Cert. in *Ohio* v. *Ford*, O. T. 2019, No. 19–1191, pp. 28–30 (asking this Court to replace our current *Atkins* doctrine with a rule barring the execution of only those who meet the Model Penal Code's definition of insane).

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Civ. Action No. 05–cv–00474 (SD Ala., Aug. 17, 2021), App. to Pet. for Cert. 82a, 87a. These types of details are far more attenuated from the Eighth Amendment principles of culpability and punishment that drove the decision in *Atkins* in the first place. See *Hall*, 572 U. S., at 737 (ALITO, J., dissenting); *Atkins* v. *Virginia*, 536 U. S. 304, 317–321 (2002) (grounding the Court's holding on the conclusion that imposing the death penalty on intellectually disabled persons does not "measurably advance" the goals of retribution or deterrence). Thus, the less weight our *Atkins* doctrine places on IQ, the less that doctrine coheres with our Eighth Amendment jurisprudence.